

Vaid Nath Vishwakarma v. State of U.P.

Allahabad High Court · Division Bench · 2 December 2014 · Writ-C No. 64856 of 2014 · **Writ dismissed; petitioner relegated to Clause 6.5 objection.**

HEADNOTE

A writ disputing the accuracy of an electricity bill and the citation issued thereon is dismissed for the alternative remedy of an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005. An objection filed within six weeks of the order shall be entertained by the authority concerned.

FACTUAL SUMMARY

The petitioner, Vaid Nath Vishwakarma, filed a writ petition in the Allahabad High Court disputing the accuracy of an electricity bill and the citation issued on that bill. The Division Bench of Tarun Agarwala and Dr. Satish Chandra, JJ. did not go into whether the bill was correct. It treated an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 as the proper remedy, dismissed the writ on that ground, and directed that any such objection filed within six weeks would be entertained.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

A consumer disputing the accuracy of a bill and a citation issued thereon has an alternative remedy of filing an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ is dismissed, and an objection filed within six weeks of the order shall be entertained. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ disputing the accuracy of an electricity bill and the citation issued thereon is dismissed for the alternative remedy of an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005. An objection filed within six weeks of the order shall be entertained by the authority concerned. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY OF THE DISPUTED BILL AND THE CITATION ISSUED THEREON

Writ dismissed without examining the bill on merits. ¶ 1